Rewriting a Privacy Policy's Data-Collection Clause

Technical Writing | Data Protection & Compliance

Motolani Deborah Akinyemi

The Original

Your privacy is important to us. In using our services, you acknowledge and agree that certain information may be collected, used, processed, and/or disclosed by us and our affiliates. Such information may include, but is not limited to, personal details, device information, usage data, location data, and any other information which we may deem necessary from time to time for the provision and improvement of our services. By continuing to use the platform, you consent to the collection and processing of your information for any and all purposes connected with our business, including marketing, analytics, personalisation, and such other purposes as we may determine. We may share your information with trusted third parties, partners, service providers, and affiliates in order to facilitate the services and for other legitimate business purposes. Your information may be retained for as long as is necessary or as may otherwise be required. We take reasonable steps to protect your information; however, we cannot guarantee absolute security. We reserve the right to amend this policy at any time without prior notice, and your continued use of the services shall constitute acceptance of any such amendments. If you have any concerns, you may contact us.

The Diagnostic

This clause reads as thorough, but in law it commits to almost nothing, and it leaves the user unable to make an informed decision about their own data. Under both the Nigeria Data Protection Act (NDPA) 2023 and the GDPR standard most international clients expect, a privacy notice has to tell the data subject what is collected, why, on what lawful basis, who it is shared with, how long it is kept, and how they can exercise their rights. This clause fails on nearly every count. The specific problems:

1. **Hedged language throughout.** Almost every statement is softened with "may" and "from time to time" ("may be collected," "may deem necessary," "may share"). Hedged wording is both unenforceable and uninformative: the user cannot tell what actually happens to their data, which defeats the transparency and fair-processing requirement at the centre of both the NDPA and GDPR. A notice that commits to nothing cannot support valid consent.

2. **No lawful basis is named.** The clause collects and processes data without stating the legal ground that permits it, whether consent, performance of a contract, a legal obligation, or legitimate interest. Both regimes require a controller to identify a lawful basis for each purpose of processing. Its absence is not a stylistic gap, it is a compliance failure a regulator can act on.

3. **Consent is bundled and forced.** "By continuing to use the platform, you consent to the collection and processing of your information for any and all purposes" rolls every purpose into one blanket, take-it-or-leave-it consent. Valid consent must be specific, informed, and granular, given purpose by purpose, so that a user can accept the core service while refusing marketing. Bundled consent of this kind is generally treated as no consent at all.

4. **The controller hides behind passive voice.** "Information may be collected" never states plainly who the data controller is and who is therefore accountable. Accountability is a core principle of both frameworks, and a user cannot enforce a right against an entity the notice declines to name.

5. **The data categories are open-ended.** "Including, but not limited to … and any other information which we may deem necessary" makes collection effectively limitless. This breaches data minimisation, the principle that collection must be adequate, relevant, and limited to what is necessary. An open-ended list asks the user to consent to the unknown.

6. **Third-party sharing is vague.** "Trusted third parties, partners, service providers, and affiliates … for other legitimate business purposes" names no categories of recipient, no specific purpose, and no safeguards, and says nothing about transfers outside the country. Cross-border transfer of personal data carries specific conditions under the NDPA, and a clause this vague cannot meet them.

7. **No retention period is set.** "For as long as is necessary or as may otherwise be required" fixes no limit, which breaches storage limitation, the principle that data is kept no longer than needed. "As long as necessary," with no stated measure, is in practice indistinguishable from keeping the data forever.

8. **Data-subject rights are absent.** Nothing tells the user they can access, correct, delete, restrict, or object to the processing of their data, or how to do so. These rights exist under the NDPA and GDPR whether or not the notice mentions them, but a notice that omits them obstructs the user and signals a controller that is not ready to honour them.

9. **Silent, unilateral amendment.** "We reserve the right to amend this policy at any time without prior notice," paired with continued use counting as acceptance, lets the controller rewrite the terms without telling anyone. A user cannot meaningfully agree to terms that can change without their knowledge.

The Rewrite

How We Handle Your Personal Data

[Company] is the controller of the personal data you share with us. This section explains what we collect, why we collect it, how long we keep it, and the rights you have over it. To act on any of those rights, contact us at [privacy@company].

What we collect, and why

Data	Why we collect it	Lawful basis	How long we keep it
Account details (name, email, phone)	To create and run your account	Performance of our contract with you	While your account is active, then [X] months
Device and usage data	To keep the service secure and fix problems	Our legitimate interest in a safe, working service	[X] months from collection
Location data	To show you nearby [X], only when you turn it on	Your consent	Until you turn it off or delete your account
Marketing preferences	To send you only the updates you asked for	Your consent	Until you unsubscribe

Who we share it with

We share your data only with [payment processor], to process payments; [cloud host], to store it securely; and regulators or law enforcement where the law requires it. We do not sell your data. If we ever transfer it outside [Nigeria], we do so only with the safeguards the NDPA requires.

Your rights

At any time, you can access the data we hold on you, correct it, delete it, object to or restrict how we use it, and withdraw any consent you have given. To do any of these, email [privacy@company], and we will respond within [30] days. You can also complain to the Nigeria Data Protection Commission.

Changes to this notice

If we change how we use your data, we will tell you before the change takes effect, not after.

Bracketed fields ([Company], [X], [privacy@company], [Nigeria]) are placeholders, because these values are specific to each business and the jurisdiction it operates in.